

STATE OF VERMONT
SUPERIOR COURT
Unit

CRIMINAL DIVISION
Case No. 1276-11-24 FrCr

In RE: Maria-Alejandra O'Shaughnessy-Whitfield

DOB 1968-12-31

PETITION TO SEAL CRIMINAL HISTORY

The above-named Defendant hereby requests that the Court order that his/her criminal history record be sealed. As grounds for the request, Defendant hereby states as follows:

1. **Charges:** I am requesting that the criminal records for the following offense(s) be sealed:

	Description of Offense	Year	Docket Number (If Any)
1.	_____	_____	_____
2.	_____	_____	_____
3.	_____	_____	_____

If more than one offense is listed, the offenses must relate to the same incident.

2. **Record of Convictions:**

☐ I was convicted of the offenses.

If you were convicted, please provide the following about your conviction:

a. Date of conviction: _____

b. I completed all of the conditions of my probation:

☐ Yes – Date of Completion: _____

☐ No

c. Any restitution ordered by the Court has been paid:

☐ Yes

☐ No

☐ Restitution was not ordered

☒ I was **not** convicted for the offenses listed above.

If you were cited or arrested for the offense, but never convicted, answer the following questions and then skip to question 3.

☐ I was cited or arrested, by (name of arresting law enforcement agency or department)

_____, but a charge was never filed with the Court.

☐ A charge was filed, but the Court did not find probable cause.

☐ A charge was filed and later dismissed by the Court.

3. List any new charges or convictions you have received since the date of the offense listed in question 1.

Offense	Date of Offense	Date of Charge	Date of Conviction
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

4. I believe that sealing of my criminal history is in the interests of justice because:

5. If the petition is granted, the court will send a copy of the order to the defendant, the defendant's attorney, the prosecuting attorney's office, the Vermont Crime Information Center, the arresting agency, the Restitution Unit of the Vermont Center for Crime Victim Services, and the Department of Motor Vehicles if pertaining to a motor vehicle charge. If there are other state entities the court should notify, please list the agency name and address here:

State Agency

Address

Documents from Other Parties in the Case

I understand that the other parties in the case are required to provide me with a copy of all documents they file with the court. If I consent, the other parties may send me documents by email instead of by mail.

I consent to receive documents from the other parties at the email provided below:

☐ YES ☐ NO

Date of Signature

Signature of Defendant

Maria-Alejandra O'Shaughnessy-Whitfield

Printed Name of Defendant

1188 Upper Notch Crossing Road, Apartment 14B

Address

South Burlington, Vermont 05403-2214

City, State, Zip

(802) 555-0199 ext. 4417

Phone

maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Email Address

cc: State's Attorney or Attorney General's Office

STATE OF VERMONT

SUPERIOR COURT

Unit

CRIMINAL DIVISION

Case No. 1276-11-24 FrCr

In RE: Maria-Alejandra O'Shaughnessy-Whitfield

DOB: 1968-12-31

STIPULATION TO SEAL CRIMINAL HISTORY RECORD

We, the undersigned Defendant and State's Attorney, hereby agree that the offense(s) meet the requirements for sealing pursuant to 13 V.S.A. §7602 and that the Court may issue an Order to seal the criminal history record for the offense(s) described below:

Description of Offense	Date of Offense	Incident Number	Docket Number (if any)

We further understand that the effect of this Order will be to seal any records of arrest, conviction or sentencing for this/these offense(s) and that the Defendant will hereafter be treated in all respects as if he or she had never been arrested, convicted, or sentenced for the offense(s).

If the petition is granted, the court will send a copy of the order to the defendant, the defendant's attorney, the prosecuting attorney's office, the Vermont Crime Information Center, the arresting agency, the Restitution Unit of the Vermont Center for Crime Victim Services, and the Department of Motor Vehicles if pertaining to a motor vehicle charge. If there are other state entities the court should notify, please list the agency name and address here:

State Agency	Address

Documents from Other Parties in the Case

I understand that the other parties in the case are required to provide me with a copy of all documents they file with the court. If I consent, the other parties may send me documents by email instead of by mail.

I consent to receive documents from the other parties at the email provided below:

☐ YES ☐ NO

Defendant:

Date:

Signature

Printed Name Maria-Alejandra O'Shaughnessy-Whitfield

Mailing Address

1188 Upper Notch Crossing Road, Apartment 14B
South Burlington, Vermont 05403-2214

Phone Number (802) 555-0199 ext. 4417

Email Address maria.alejandra.oshaughnessy.whitfield@longmailexample.org

State's Attorney:

Date:

Signature

Printed Name

ORDER

Based upon the agreement of the Defendant and the State's Attorney and pursuant to 13 V.S.A. §7602, it is hereby ORDERED that criminal history record of the offense(s) described above be sealed.

All records related to the arrest, conviction or sentencing for this/these offense(s) shall be sealed and that the Defendant will hereafter be treated in all respects as if he or she had never been arrested, convicted of sentenced for the offense(s).

cc: State's Attorney
Arresting Agency
Diversion
DMV, if applicable
VCIC
Defendant
Defender General
Attorney General

STATE OF VERMONT

SUPERIOR COURT

DIVISION

Unit

Case No. _____

APPLICATION TO WAIVE FILING FEES AND SERVICE COSTS

Case Name

Name: (First & Last) _____

Street Address: _____

City/State/Zip: _____

Mailing Address: (if different from street address) _____

Email Address: _____

Home / Cell Phone: _____ Work Phone: _____

Total Number Living in Household (spouse, partner & dependents) _____

Employment

Are you employed? ☐ Yes ☐ No If Yes, list Employers' Name & Address

Employer Name

Employer Address

Section 1: Public Assistance:

Do you receive any kind of government benefit that is based on need, dependent children, or other income sensitive criteria? ☐ Yes ☐ No

Type of Assistance: _____ Monthly Amount \$ _____

IF YOU RECEIVE ANY PUBLIC ASSISTANCE, YOU DO NOT NEED TO FILL OUT THE REMAINDER OF THE FORM. GO TO THE SIGNATURE AND DECLARATION SECTION ON THE BOTTOM OF PAGE 2.

Section 2: Income and Expenses

If you do NOT receive public assistance, fill out the following:

Income	Expenses
Your Current Monthly Income Gross Income from Wages Unemployment \$ _____ Compensation \$ _____ Child Support \$ _____ Other Income \$ _____ (including Social Security Disability Income ("SSDI"), Disability Insurance & Social Security retirement benefits) Self-Employment/Business Income \$ _____ (other than wages) Total Monthly Income \$ _____ Total Income in the past 12 months \$ _____	Your monthly household expenses Rent or Mortgage Payment \$ _____ Electric Service \$ _____ Phone \$ _____ Fuel (heat and/or gas) \$ _____ Food \$ _____ Clothing \$ _____ Medical \$ _____ Child Support \$ _____ Auto Loan Payment \$ _____ Property Taxes \$ _____ Insurance (health, auto, etc.) \$ _____ Other Expenses \$ _____ Total Expenses \$ _____

Section 3: Other Assets

I have additional assets: ☐ Yes ☐ No If Yes, describe them below

Vehicles	Make, Model, Year	Fair Market Value (FMV)	Amount Owed	Net Value
		\$	\$	\$
		\$	\$	\$
		\$	\$	\$
		\$	\$	\$
Real Property	Description	FMV	Mortgage	Net Value
		\$	\$	\$
		\$	\$	\$
Cash Assets				
	Cash on Hand	\$		
	Checking Account	\$		
	Savings Accounts	\$		
	Total Cash Assets	\$		
Other Assets	Description	FMV	Use additional sheets as necessary	
(examples - tools, equipment, recreational vehicles, electronics, stocks, bonds, etc.)				

Section 4: Additional Information

These are additional reasons why I cannot afford the fees:

I request the Court waive filing fees and/or pay service fees in this case because of my low income.

Section 5: Signatures and Declaration

I declare that the above statement is true and accurate to the best of my knowledge and belief. I understand that if the above statement is false, I will be subject to the penalty of perjury, or other sanctions in the discretion of the court.

Date

Applicant Signature

Printed Name

PROCESS GUIDANCE, INCLUDING THE ROUTE THAT FILES NOTHING

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case No.: 1276-11-24 FrCr

Route: Petition to Seal a Non-Conviction Record, 13 V.S.A. Sec. 7603

THREE ROUTES, AND THIS PACKET CARRIES ALL THREE

- an ordinary contested petition at any time (13 V.S.A. Sec. 7603(g)): Form 200-00130.
- a stipulated sealing at any time (13 V.S.A. Sec. 7603(a)(2)): Form 200-00132.
- no filing - process guidance: this page.

1. THE CONTESTED PETITION

File the petition (200-00130) with the Vermont Superior Court, Criminal Division, in the unit where your case was decided. The State's Attorney may oppose it and the court may set a hearing. This is the route that does not need anybody's agreement.

2. THE STIPULATED SEALING

If the prosecuting office will agree, sign the stipulation (200-00132) and take or send it to that office. The participant does not file the stipulation: the prosecutor signs and files it with the court. The court may then seal the record on that agreement.

If the State's Attorney will not sign, that is not the end of it. File the petition on its own and ask the court to set a hearing. The two routes use the same underlying facts and this packet prepares both.

3. THE ROUTE THAT FILES NOTHING

Some non-conviction records are cleared without a petition at all, and a packet that only ever told you to file would be telling you to do work you may not need to do. Before you file, ask the clerk of the unit above whether the record you are asking about has already been sealed, or is due to be, without a filing. If it has, nothing in this packet needs to be filed.

There is a timetable and there is a criterion, and both come from the statute rather than from these forms. Under 13 V.S.A. Sec. 7603(a)(1) the court shall issue the sealing order within 60 days after final disposition where the court made no probable cause determination at arraignment, the charge was dismissed before trial with or without prejudice, or you were acquitted -- unless a party objects in the interests of justice, in which case the court schedules a hearing under Sec. 7603(b) instead, with you and the prosecuting attorney as the only parties. To see where your own record stands, complete Form 200-00331, Request for Criminal Record Search, and submit it to the court in the county; the result of that search is how you see whether the automatic sealing has already happened. A separate request is needed for each county and there is a fee for it, so allow time for the answer before you decide whether to file. The clerk of the unit is who can tell you where your own record stands.

NO FILING FEE ON THIS TRACK

There is no filing fee on this non-conviction sealing track. Under 32 V.S.A. Sec. 1431(e), the \$90 fee applies only to sealing a conviction for a violation of 23 V.S.A. Sec. 1201(a). This track does not seal a conviction.

Form 600-00228, the Judiciary's statewide Application to Waive Filing Fees and Service Costs, is conditional: it is used only where a filing fee is actually charged and the applicant cannot pay it. No fee is charged on this track, so nothing on it needs to be completed or filed for this petition. It is in this packet BLANK on purpose -- the platform has written nothing on it, because page 2 of that form is a financial declaration made under oath and this packet asserts no financial fact on your behalf.

NO PARTICIPANT SERVICE OF PROCESS

You do not serve the prosecutor with process. If you file the petition, the court provides a copy to the prosecutor. If you use the stipulation, take or send it to the prosecuting office; the prosecutor signs and files it with the court.

WHAT THIS PACKET IS NOT

This is a prepared set of official Vermont forms and this guidance page. It is not legal advice, it is not filed for you, and it does not decide whether the court will seal the record.

Route: sealing a record that did not end in a conviction (13 V.S.A. Sec. 7603)

INTERESTS-OF-JUSTICE PROMPTS -- THE STATEMENT ONLY YOU CAN WRITE

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case No.: 1276-11-24 Frcr

Route: an ordinary contested petition at any time (13 V.S.A. Sec. 7603(g))

WHY THIS PAGE IS IN THE PACKET

On the ordinary petition route the court grants the petition if it finds that sealing serves the interests of justice. The burden is yours rather than the State's: this is the route where you have to satisfy the court, and not the one where the State has to show why not. Question 4 of the petition (200-00130) prints "I believe that sealing of my criminal history is in the interests of justice because:" and the words after that colon are yours.

THIS PAGE IS PROMPTS, NOT AN ANSWER, AND IT IS NOT FILED

The platform has written nothing in question 4 and it will not. It does not draft that statement for you, does not show you an example one, and does not suggest sentences for you to sign your name under. What follows is questions. Your answers to them, in your own words, are what goes on the petition. This page itself is not filed and is not part of what the court reads.

QUESTIONS TO ANSWER IN YOUR OWN WORDS

Answer the ones that are true of you and leave the rest alone. A short, plain, honest answer is a real answer: there is no required length and no required form of words.

- What happened in this case, and how did it end?
- What does having this record on your criminal history stop you from doing now?
- Has it come up in a job, a license application, housing, schooling, volunteering or anything else? What happened when it did?
- Who else is affected by it -- family, dependants, anyone who relies on you?
- How much time has passed since the case ended, and what have you been doing in that time?
- Is there anything about how the case ended -- no charge filed, no probable cause found, dismissed, or acquitted -- that you want the court to have in front of it?
- What would change for you if the court sealed this record?
- Is there anything you would want the court to know that nobody has asked you about yet?

WHERE YOUR ANSWER GOES

Write it in the space the petition prints after question 4. If what you have written does not fit that space, ask the clerk of the unit where you are filing how the court wants a longer statement submitted, rather than cutting it down before you have asked. Where self-help ends on this route is the instructions page, which lists the registry's stop conditions in its own words.

Route: sealing a record that did not end in a conviction (13 V.S.A. Sec. 7603)